

**BEFORE THE
GOVERNING BOARD OF THE
MONROVIA UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

**In the Matter of the District's Statement of Reduction in
Force Against:**

**CERTIFICATED TEACHERS OF THE MONROVIA UNIFIED
SCHOOL DISTRICT,**

Respondents.

OAH No. 2025031047

PROPOSED DECISION

Harden Sooper, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, heard this matter on April 16, 2025.

Sharon J. Ormond, Attorney at Law, represented the Monrovia Unified School District (District).

Carlos R. Perez, Attorney at Law, represented respondents Nancy Bravo, Jasmin Y. Castro, Daniel Chacon, David P. Clark, Jolisa Grimmer, Higinio Lujan, Jessica Meza, Natalie Ridley, and Stephanie Wang. All respondents were present at the hearing.

During the hearing, the District rescinded respondent David P. Clark's layoff notice. Therefore, this Proposed Decision does not address the District's previously proposed layoff of Mr. Clark.

The ALJ received testimony and documentary evidence. The record closed and the matter was submitted for decision on April 16, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondents are certificated employees of the District.
2. On February 26, 2025, the Governing Board (Board) of the District adopted Resolution Number 2425-24 (Resolution) to reduce or discontinue particular kinds of services provided by the District at the end of the 2024-2025 school year as follows: (1) 14 Full-Time Equivalent (FTE) elementary teaching services positions, (2) 2.4 FTE Career Technology Education (CTE) art media credential teaching services positions, (3) four FTE secondary English language arts teaching services positions, (4) five FTE secondary math teaching services positions, (5) one FTE secondary biology life science teaching services position, (6) one FTE secondary foundational science teaching services position, (7) two FTE secondary Spanish teaching services positions, (8) two FTE secondary physical education teaching services positions, (9) four FTE special education services positions servicing students with mild/moderate disabilities and requiring an added authorization for Autism Spectrum Disorder (AAAS), (10) two FTE social worker services positions, (11) one FTE high school counseling services position, (12) 0.625 FTE middle school counseling services position, and (13) two FTE middle school assistant principal services positions.

3. The Board directed the District Superintendent or their designee to initiate layoff procedures and give appropriate notice pursuant to Education Code sections 44955 and 44949 to a corresponding number of certificated employees.

4. On February 27, 2025, the District served each respondent with a Preliminary Notice of Recommendation Not to Reemploy for the 2025-2026 School Year, informing them that their services would not be required for the 2025-2026 school year.

5. On the same date, Vanessa Landesfeind, Ed.D., the District's Assistant Superintendent of Human Resources, filed the Statement of Reduction in Force while acting in her official capacity. The District served each respondent with the Statement of Reduction in Force, Statement to Respondent, blank Request for Hearing and Notice of Participation form, and copies of pertinent provisions of the Government and Education Codes.

6. Each respondent timely submitted a signed Request for Hearing and Notice of Participation.

Reduction of Particular Kinds of Services

7. At the hearing, Dr. Landesfeind testified regarding the District's decision to reduce particular kinds of services. The District consists of nine school sites and serves approximately 4,900 students. Dr. Landesfeind explained the District is currently in a state of deficit spending, also known as structural deficit. The District is spending funds held in reserve such that the District may become fiscally insolvent. The County of Los Angeles required the District to file a fiscal stabilization plan setting forth the District's plan to reduce expenditures and eliminate its structural deficit. Dr. Landesfeind testified after the District filed its initial plan, the County of Los Angeles

required the District to file an amended fiscal stabilization plan further reducing expenditures. As part of its plan to reduce expenditures, the District will reconfigure its campuses such that all elementary schools will include students in kindergarten through sixth grade and all middle schools will include students in seventh and eighth grade. The District's continuation high school will be co-located with another school within the District. The fiscal stabilization plan requires a reduction in the need for certificated teachers.

8. Before adopting the Resolution, the District considered all known attrition in determining the number of layoff notices to be served on its employees. In a layoff proceeding, a governing board need only consider positively assured attrition which occurs before the March 15 layoff notice deadline, not thereafter. (*San Jose Teachers Assn. v. Allen* (1983) 144 Cal.App.3d 627, 635.) However, Dr. Landesfeind testified the District will take into consideration any additional resignation and retirement notices before issuing final layoff notices.

Bumping Criteria and Skipping Criteria

9. The Resolution defined "competency" for purposes of allowing an employee currently assigned in a position subject to layoff to "bump" a less senior employee holding another position not subject to layoff. The Resolution provides that "competency" shall mean (1) current possession of a valid clear or preliminary credential in the subject or grade level; (2) possession of a full English Learner certificate, if required by the position; (3) possession of a single subject credential if teaching in a departmentalized setting; and (4) any training and experience necessary to meet the requirements of specialized positions. The Resolution further stated bumping shall only be allowed in cases where the senior employee is both competent and credentialed to assume the whole assignment of the more junior employee.

Respondents did not challenge the District's competency definition, and only respondent Grimmer challenged her right to bump a junior employee, as discussed below.

10. The Resolution also established "skipping" criteria to retain certain employees for the following school year regardless of seniority. Specifically, the Resolution provides that certificated employees who possess special training and experience to teach classes in the Mandarin Dual Immersion Program are subject to skipping. Respondents did not challenge the District's skipping criteria, and none of the respondents indicated they possessed such qualifications.

Seniority List and Tiebreaking Criteria

11. The District maintains a seniority list containing each employee's seniority date, in most cases their hire date; credential information; and current assignments, including the FTEs associated with their position. Dr. Landesfeind testified to the accuracy of the seniority list and how it was compiled. The list was updated based on information in employee personnel files and, for credential information, confirmed by accessing the California Commission on Teacher Credentialing (CTC) website. Employees were allowed to confirm or challenge the accuracy of that information and in some cases, the District updated the list based upon new information provided by employees.

12. The District used the seniority list to implement and determine the proposed layoffs. The District identified the least senior certificated employees currently assigned to the particular kinds of services to be reduced. The District then determined how many certificated employees assigned to the particular kinds of services are retiring or resigning; whether the least senior certificated employees in

these particular kinds of services hold other credentials, can perform in other service areas, and are entitled to bump other more junior certificated employees; whether certain certificated employees should be skipped and retained; and how many certificated employees in each service area must be reassigned or laid off.

13. To determine the relative seniority of certificated employees who first rendered paid service on the same date, the Board, on January 15, 2025, adopted Resolution Number 2425-15 establishing tie-breaker criteria. The tie-breaking criteria provide for a point system awarding priority based on credential status and type, number of years of experience, and educational background. Employees with current special education or bilingual teaching credentials earn additional points. In the event of a tie after applying the tie-breaking criteria, the District would hold a random lottery. Respondents did not challenge the tiebreaker criteria or their application.

Respondent Grimmer's Challenge to Bumping Application

14. Respondent Jolisa Grimmer has been employed as a part-time, or 0.625 FTE, school counselor at the District for eight years. She is currently assigned to a school site encompassing both an independent study program and a continuation high school. When she initially began working for the District, respondent Grimmer was a counselor only for the independent study program. In 2021 or 2022, she assumed responsibility as a counselor for both the independent study program and the continuation high school. However, respondent Grimmer's job remained a 0.625 FTE position. Respondent Grimmer did not dispute her seniority date is May 17, 2018.

15. According to the District, respondent Grimmer is subject to layoff because she was bumped from her position by a more senior part-time counselor, Adlina Dugan, with a seniority date of September 19, 2017. Ms. Dugan's position as a

0.625 FTE middle school counselor was eliminated pursuant to the Resolution. Ms. Dugan and respondent Grimmer hold the same Pupil Personnel Services (PPS) school counseling credential. That PPS school counseling credential allows respondent Grimmer to work as a school counselor for grades kindergarten through 12. Respondent Grimmer did not dispute she was subject to bumping by Ms. Dugan.

16. In her testimony, respondent Grimmer asserted she is a permanent employee who is certified and competent to perform jobs currently held by less senior full-time counselors and therefore should be entitled to bump a less senior full-time counselor. Respondent Grimmer testified she was unaware her status as a part-time employee subjected her to layoff before a less senior full-time employee who held the same credential. She further testified the District's position is capricious, unethical, discriminatory, and violates the Education Code and District policy.

17. On behalf of the District, Dr. Landesfeind testified respondent Grimmer was not entitled as a part-time employee to bump a full-time employee. According to Dr. Landesfeind, an employee subject to layoff may only bump a less senior employee holding a position with the same number of hours or FTE. The District therefore cannot split a full-time position into two part-time positions to accommodate a more senior part-time employee. In support of the District's position, Dr. Landesfeind cited paragraph E of the Resolution, which states, "bumping shall only be allowed in cases where the senior employee is both competent and credentialed to assume the whole assignment of the more junior employee." (Ex. 1, p. A2.) Dr. Landesfeind testified paragraph E means only a full-time employee can bump another full-time employee.

18. The District also cited *Hildebrandt v. St. Helena Unified School Dist.* (2009) 172 Cal.App.4th 334 (*Hildebrandt*), in which the court held two part-time psychologists were not entitled to bump a less senior full-time psychologist. In

response, respondent Grimmer asserted she is not requesting the District split a full-time position. Rather, she is willing to assume a full-time position, allowing the District to maintain its desired staffing levels.

19. The *Hildebrandt* court explicitly did not opine on the situation presented by respondent Grimmer: “Neither appellant here asserts that by virtue of her seniority she is entitled to the full-time psychologist position. . . . We have no occasion to consider what the appellants’ rights would have been had such a demand been made.” (*Hildebrandt, supra*, at p. 345.) However, the *Hildebrandt* court noted a district may define a “service” in terms of the hours required to perform it, so that two part-time employees performing the same responsibilities do not necessarily perform the same “service” as one full-time employee. The court, though, did not require a school district to define a service in that manner and recognized that some districts may determine that an assignment can equally effectively be shared by two or more part-time employees. The court found that if the determination is reasonable and made in good faith, neither section 49455 nor any other provision of the Education Code precludes a school district from defining a position, or a “service,” as full-time. (*Id.* at p. 344, citing *Murray v. Sonoma County Office of Education* (1989) 208 Cal.App.3d 456.)

20. The District’s position is that the service eliminated by the Resolution was a part-time school counselor, which is not the same service as a full-time school counselor, as respondent Grimmer argued. The District’s definition of service was reasonable and made in good faith. Respondent Grimmer did not contend that the District retained any part-time school counselor junior to her.

21. The *Hildebrandt* court also in a footnote cited *Waldron v. Sulphur Springs Union School Dist.* (1979) 96 Cal.App.3d 503 (*Waldron*), in which the court reversed an order granting priority to a previously laid off part-time employee to be

employed as a full-time teacher to the next vacancy, pursuant to the reinstatement procedures stated in Education Code section 44956. The *Waldron* court reasoned: "To hold otherwise would give to a teacher who was laid off a priority that she would not have had if there had been no layoff. We cannot read the statute as conferring that bonus." (*Waldron, supra*, 96 Cal.App.3d at p. 505.) Although *Waldron* involved a reinstatement under section 44956, the *Hildebrandt* court found sections 44955 and 44956 should be read together and applied consistently if reasonably possible to do so. (*Hildebrandt, supra*, at p. 343.) Here, respondent Grimmer bumping a less senior full-time counselor would likewise confer to her a bonus she would not have otherwise had if not for the District's proposed layoffs. This is particularly true with respect to Ms. Dugan, who is more senior than respondent Grimmer and will continue to occupy a part-time counselor position.

22. Based on the foregoing, respondent Grimmer was not entitled to bump a less senior full-time counselor.

Respondent Chacon's Testimony

23. Respondent Daniel Chacon has worked as a teacher for the District for 10 years. He holds a CTE Arts, Media, and Entertainment credential and teaches theater, drama, video production, and drawing at the District's alternative education site, which includes an independent study program and continuation high school. Respondent Chacon testified at hearing in opposition to the District's decision to eliminate 2.4 FTE CTE art media credential services positions. Respondent Chacon expressed his concern about the future of services provided to students in alternative education programs, who are often underserved and do not thrive in a traditional school setting. Although respondent Chacon's testimony was sincere and his concerns valid, the evidence did not prove the District's decision to eliminate the identified art media credential

teaching services positions was arbitrary, capricious, or an improper exercise of its discretion. Respondent Chacon did not dispute his seniority date nor did he assert he was entitled to bump a less senior employee.

LEGAL CONCLUSIONS

1. All notice and jurisdictional requirements set forth in Education Code sections 44949 and 44955 were met.

2. The services identified in the Resolution are particular kinds of services that could be reduced or discontinued under Education Code section 44955. The Board's decision to reduce or discontinue the identified services was neither arbitrary nor capricious and was a proper exercise of its discretion. Cause for the reduction or discontinuation of services relates solely to the welfare of the District's schools and pupils within the meaning of Education Code section 44949.

3. A school district may reduce services within the meaning of section 44955, subdivision (b), "either by determining that a certain type of service to students shall not, thereafter, be performed at all by anyone, or it may 'reduce services' by determining that proffered services shall be reduced in extent because fewer employees are made available to deal with the pupils involved." (*Rutherford v. Board of Trustees* (1976) 64 Cal.App.3d 167, 178-179.)

4. Under Education Code section 44955, subdivision (d)(1), junior teachers may be given retention priority over senior teachers if the junior teachers possess superior skills or capabilities that their more senior counterparts lack. (*Santa Clara Federation of Teachers, Local 2393 v. Governing Board* (1981) 116 Cal.App.3d 831, 842-843.) The District's skipping criteria are not in dispute.

5. A senior teacher whose position is discontinued has the right to transfer to a continuing position that he or she is certificated and competent to fill. In doing so, the senior employee may displace or "bump" a junior employee who is filling that position. (*Lacy v. Richmond Unified School Dist.* (1975) 13 Cal.3d 469.) A school district has discretion to determine whether an employee is certified and competent to be reassigned and, as a result, to displace a junior employee, in accordance with Education Code section 44955, subdivisions (c) and (d). (*Duax v. Kern Community College Dist.* (1987) 196 Cal.App.3d 555, 565.) The criteria used to determine a teacher's competence must be reasonable. (*Id.* at p. 566.) Competency criteria that consider the skills and qualifications required of the teacher are reasonable. (*Id.* at pp. 565-566.) The competency criteria adopted in the Resolution are reasonable.

6. No junior certificated employee is scheduled to be retained to perform a service that a more senior employee is certificated and competent to render. (Ed. Code, § 44955, subd. (b).)

7. Based on the above, there is sufficient cause for not reemploying respondents for the ensuing school year. (Ed. Code, § 44949, subd. (b).)

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ORDER

1. The District's Statement of Reduction in Force is sustained.

2. Notice may be given to employees occupying 43.625 full-time equivalent certificated positions that their services will not be required for the 2025-2026 school year because of the reduction and discontinuance of particular kinds of services. Notice shall be given in inverse order of seniority. Such notice may be given to respondents Nancy Bravo, Jasmin Y. Castro, Daniel Chacon, Jolisa Grimmer, Higinio Lujan, Jessica Meza, Natalie Ridley, and Stephanie Wang.

DATE: 05/05/2025

A handwritten signature in black ink that reads "Harden Sooper". The script is cursive and fluid.

HARDEN SOOPER

Administrative Law Judge

Office of Administrative Hearings